

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior Judge Walker D. Miller**

Courtroom Deputy: Bernique Abiakam
Court Reporter: Kara Spitler

April 12, 2010

Civil Action No. 06-cv-01142-WDM-MJW

Parties:

KARYN S. PALGUT,

Plaintiff,

Counsel:

Donna E. Dell'Olio
Ian David Kalmanowitz

v.

CITY OF COLORADO SPRINGS,

Defendant.

Steven W. Moore
William B. Bain

COURTROOM MINUTES

Jury Trial Day 1

1:43 p.m. Court in session.

Court calls case. Jury panel present.

Preliminary remarks by the Court.

Jury panel sworn.

Preliminary instructions by the Court.

Introduction of the Court, staff, attorneys, parties and witnesses.

2:07 p.m. Voir dire begins.

2:37 p.m. Court in recess.

2:57 p.m. Court in session.

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Continued voir dire by the Court.

3:15 p.m. Bench conference regarding further voir dire questions.

3:17 p.m. Voir dire begins by Mr. Kalmanowitz.

3:23 p.m. Further voir dire questions by the Court.

3:24 p.m. Voir dire begins by Mr. Bain.

3:36 p.m. Remaining jury panel excused.

3:43 p.m. Excused by the Plaintiff: Excused by the Defendant:

100197592
100191834
100193017

100187357
100165367
100176107

Jurors seated to try the case: 100165223
100164241
100165767
100163776
100180158
100195440
100171458
100193143

3:45 p.m. Jury sworn.

3:46 p.m. Instructions read to the jury.

4:13 p.m. Jury excused until tomorrow morning at 9:00 a.m.

The Court advises counsel regarding proposed schedule on pending rulings.

Counsel shall arrived tomorrow morning at 8:45 a.m.

4:16 p.m. Court in recess.

Trial continued.

Total time in court: 2 hours, 13 minutes.